

On May 5, 2026, Defendant served further verified amended responses to Plaintiff's Requests for Production of Documents, Set One.

Accordingly, the motion to compel further responses is DENIED AS MOOT.

This leaves the issue of monetary sanctions.

Here, Defendant states that “[t]he requested documents were not in counsel’s possession and required coordination with the City to obtain.” (Khosravi Decl. ¶ 6). It is then stated that “Defendant obtained the documents shortly before the filing of this Opposition and produced them at the earliest opportunity thereafter . . .” (Khosravi Decl. ¶¶ 7, 9).

The inability to comply was not stated in Defendant’s responses to Plaintiff’s Requests for Production of Documents, Set One, requests 1 and 7. Nor did the responses state that the City of Los Banos was in possession of the documents at issue. (See Code Civ. Proc. §§ 2031.220, 2031.230) The responses were to object based on privilege and third-party privacy rights. Defendant then, in their March 26, 2026, letter stood firm on their original response, only alluding that “Defendant cannot produce materials containing such information in their current form.” (Khosravi Response Letter Dated March 26, 2026) There was no statement that there was an effort to obtain the documents and that they would be provided after review.

If Defendant had intended to provide a further response once the documents were obtained from the City, and after there was an opportunity to review and redact the privileged or private information, they should have stated so much either in their discovery responses or in their March 26, 2026, response to Plaintiff’s March 5, 2026, meet and confer letter.

Further, although amended responses were provided to Plaintiff they were not provided until after Plaintiff filed their motion to compel further responses. As such, Defendant willfully failed to timely comply with the discovery requests. Accordingly, Plaintiff was substantially justified in bringing this instant motion and is entitled to monetary sanctions.

The request for monetary sanctions is GRANTED.

Plaintiff requests monetary sanctions in the amount of \$2,038, which represents two (2) hours at \$1,019 per hour. The court finds hourly rate claimed to be excessive and not representative of reasonable attorney rates for the area. Accordingly, the court reduces the hourly rate to \$300 per hour.

Monetary sanctions in the amount of \$600 are to be paid to Plaintiff’s counsel within thirty (30) days of this court’s order.

The petition to enforce deposition subpoena is GRANTED.

Verizon is ordered to comply with the deposition subpoena and produce the records and information identified therein.

Petitioner is ordered to prepare and file a proposed order to be filed with this court within five (5) days.

26CV-01712 Joshua Alvarez vs Jeovanny Velasquez

Order to Show Cause re: Dismissal

Appearance required.

26CV-02278 Ashley Grose vs Renee Garavito

Order to Show Cause re: Restraining Order

Appearance required.